IMPORTANT INFORMATION ABOUT COMPLETING THIS AFFIDAVIT OF HEIRSHIP

Submitting an incomplete or inaccurate affidavit may delay the processing of your claim.

The Comptroller's office may require a claimant to submit this form to establish whether a claimant is a legal heir of the reported owner or of the reported owner's heirs. This form may be used for claims under $10,000.01 where the reported owner is deceased and:

- died without a will;
- died with a will that was not probated or filed as muniment of title, but the beneficiaries named in the will are the same persons who would inherit if the person was intestate (i.e., the heirs named in the affidavit of heirship match the beneficiaries named in the will).

This form may also be required to obtain additional information about the reported owner's family history to otherwise validate a claim.

SECTION A. Witness Information

- The individual completing the witness information, ***cannot*** be the claimant and ***cannot*** benefit from the reported owner's unclaimed property.
- An answer must be provided for the statement "I am **not the claimant**, and I will not benefit from the decedent's estate". If you are the claimant or you will benefit from the decedent's unclaimed property, **you may not complete this affidavit.**

SECTION B. Decedent Information

- If the deceased owner did not have a probated will, an Affidavit of Heirship may be accepted.
- A ***complete*** copy of the will (and any codicils, if applicable) must also be submitted.

SECTION C. Marital and Family History

- This section must include a complete and accurate marital and family history.
- All marriages need to be listed, whether it was a current marriage at the time of death or a marriage that ended because of death or divorce.
- All children need to be listed, regardless if they are living or deceased.
- If you need additional space, you may submit a legible, handwritten or typed document listing additional marital and family history.

SECTION D. Attestation

- This section **must** be completed in front of a notary public.
- The individual signing as the witness before the notary ***cannot*** be the claimant and ***cannot*** benefit from the reported owner's unclaimed property.

53-111-A
(Rev. 9-21/5)

AFFIDAVIT OF HEIRSHIP

The claimant must upload a copy of the completed, notarized affidavit to ClaimItTexas.gov.
Refer to the attached instruction sheet for more information on completing this affidavit.

Name of reported owner:	Claim number:

Affidavit of facts concerning the identity of Heirs for the Estate of: _____
NAME OF DECEASED PERSON (DECEDENT)

SECTION A. WITNESS INFORMATION

If additional space is needed for any of the fields below, please provide an attachment with the additional information.

Before me, the undersigned authority, on this day personally appeared: _____
WITNESS NAME (PERSON COMPLETING THIS FORM)

who, being first duly sworn, upon his/her oath states:

1. My name is: _____
WITNESS NAME (PERSON COMPLETING THIS FORM)

My current address is: _____

☐ True I am **not the claimant**, and I will not benefit from the decedent's estate.

I have personal knowledge of the family history and facts of heirship of: _____
NAME OF DECEASED PERSON (DECEDENT)

The decedent was my _____. I knew the decedent for _____ years.
RELATIONSHIP

SECTION B. DECEDENT INFORMATION

2. Decedent died on _____
DATE OF DEATH

Decedent's residence at the time of decedent's death: _____
CITY STATE COUNTY

Decedent left a will: ☐ Yes ☐ No *If no, continue completing this form.*

If yes, was will probated? ☐ Yes ☐ No *If yes, this form is not required and the claimant should submit the probated will. If no, continue completing this form. The claimant must provide a complete copy of the will along with this form.*

SECTION C. MARITAL AND FAMILY HISTORY

3. At the time of decedent's death, decedent was: ☐ Never married ☐ Married ☐ Divorced/widowed

List all marriages, including those that ended in divorce or death. Mark N/A if not applicable

NAME OF SPOUSE	DATE OF MARRIAGE	DATE OF DIVORCE	DATE OF SPOUSE'S DEATH	CURRENT ADDRESS

4. Did the decedent have any biological or adopted children? ☐ Yes ☐ No *If yes, complete information below. If no, proceed to #6*

NAME OF CHILD	NAME OF OTHER PARENT	CHILD'S DATE OF BIRTH	CHILD'S CURRENT ADDRESS

5. Are any of the children listed in #4 deceased? ☐ Yes ☐ No *If yes, complete information below. If no, proceed to Section D – Attestation*

DECEASED CHILD INFORMATION				CHILDREN OF DECEASED CHILD		
NAME OF DECEASED CHILD	DATE OF DEATH	SURVIVING SPOUSE NAME *(IF APPLICABLE)*	IS SPOUSE ALIVE? Y/N	CHILD'S NAME DOB AND CURRENT ADDRESS	IS CHILD ALIVE? Y/N	CHILD'S OTHER PARENT *(IF KNOWN)*

Name of reported owner	Claim number:

6. Did the decedent have:
   a. A surviving spouse at time of death? ☐ Yes ☐ No
   b. Surviving children or children's descendants at time of death? ☐ Yes ☐ No

   If yes to at least one of the above, proceed to Section D - Attestation

7. Provide the following information on the decedent's parents:

NAME OF PARENT	IS THIS PARENT DECEASED?	IF YES, PROVIDE DATE OF DEATH	CURRENT ADDRESS

8. Are either of the decedent's parents deceased? ☐ Yes ☐ No *If yes, complete information below. If no, proceed to Section D – Attestation*

9. Did the decedent have siblings? ☐ Yes ☐ No *If yes, complete information below. If no, proceed to Section D – Attestation*

   List all siblings, including half or adopted. Do not include stepsiblings unless adopted.

NAME OF SIBLING AND CURRENT ADDRESS	DATE OF BIRTH	SIBLING MOTHER NAME	SIBLING FATHER NAME

10. Are any of the siblings listed in #9 deceased ? ☐ Yes ☐ No *If yes, complete information below. If no, proceed to Section D – Attestation*

DECEASED SIBLING INFORMATION				CHILDREN OF DECEASED SIBLING		
NAME OF DECEASED SIBLING	DATE OF DEATH	SURVIVING SPOUSE NAME *(IF APPLICABLE)*	IS SPOUSE ALIVE? Y/N	CHILD'S NAME DOB AND CURRENT ADDRESS	IS CHILD ALIVE? Y/N	CHILD'S OTHER PARENT *(IF KNOWN)*

Section D must be completed in front of a notary public

SECTION D. ATTESTATION

I swear under penalty of perjury that the foregoing is true, accurate, and complete to the best of my

Signed this _____ day of _____, _____.

_____
SIGNATURE OF WITNESS BEFORE NOTARY

State of _____ County of _____

Sworn to and subscribed to before me on _____
(DATE)

by _____
PRINTED WITNESS NAME

_____
NOTARY SIGNATURE

(Notary Seal) My commission expires: _____ day of _____, _____.

The claimant must upload a copy of the completed, notarized affidavit to ClaimItTexas.gov.